

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: August 27, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
START ON THE NEXT PAGE**

9:00 a.m. CALENDAR

LINE

1

RODRIGUEZ v. GREEN VALLEY PAINTING, INC., et al
CU25-03192

Motion for Preliminary Approval of PAGA & Class Action Settlement

TENTATIVE RULING

This matter is continued to September 3, 2026 at 9:00 A.M. in Department 22.

9:30 a.m. CALENDAR

LINE

2

IN RE THE ESTATE OF STEPHEN GERARD PAUL MONTGOMERY,
DECEASED
FPR051210

Petition for Settlement of First Account and Report of Former Administrator

Objections to Petition for Settlement of First Account and Request for Surcharge

PREGRANT ORDER

This matter was continued from April 22, 2026, June 24, 2026, and July 22, 2026. The court has reviewed the Declaration filed by the former administrator on June 11, 2026 which resolved the outstanding issues with her account.

Counsel and parties may appear via Zoom, in person, or by CourtCall, per Solano County Local Rules, Rule 7.9(b)(1). Counsel shall be prepared to advise the court whether the parties would agree to participate in court-sponsored mediation.

LINE

3

IN THE MATTER OF WILLIE J. BURNS & JULIE P. BURNS TRUST
FPR051670

Petition to Compel Accounting; Prob. Code 10950, Subd. (a) Prob C 16062

PREGRANT ORDER

This matter was continued from July 1, 2026 to allow counsel for the moving party to meet and confer regarding the Petition to Compel Accounting. The court advised that if the court date is not needed, counsel Burrey is to notify counsel Leroy and the court. Nothing has been filed with the court regarding any meet and confer efforts.

Counsel and parties may appear via Zoom, in person, or by CourtCall.

LINE

4

**IN THE MATTER OF THE GRIEF FAMILY 2011 REVOCABLE
TRUST DATED 9/26/11
PR24-00101**

Petitioner Theodora Dahan's Notice Of Motion; And Motion To Suspend Pamela Grief As Trustee; Declaration Of Shimona Dahan, Exhibits 1-25.

Respondent and Trustee Pamela Grief's Opposition to Motion to Suspend Pamela Grief as Trustee

Petitioner Theodora Dahan's Reply in Support of Motion to Suspend Pamela Grief as Trustee; and Request for Order Compelling Accounting and Freezing Distributions

Status Hearing RE: Mediation

PREGRANT ORDER

This matter was continued from July 23, 2026 at the request of counsel.

This matter is on calendar for the Motion to Suspend Trustee and for Status Review on the Mediation. The court has read the petitioner's Reply filed June 8, 2026 in which the petitioner reports that the respondent has not complied with the court's January 20, 2026 *Breslin* order to participate in mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

The respondent shall advise the court why she has failed to comply with the *Breslin* order.

LINE

5

**IN RE THE ESTATE OF STEVEN LEROY FERGUSON, DECEASED
PR26-00099**

Amended Petition for Letters of Administration; Letters of Special Administration with General Powers

PREGRANT ORDER

This matter was continued from April 9, 2026 and June 25, 2026 to allow the petitioner to address issues with the petition. The Letters of Special Administration expired April 9, 2026. The court notes that an amended petition was filed August 13, 2026 which did not resolve all of the issues.

The court on its own motion continues this hearing to October 22, 2026 at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. An amended petition replaces the prior petition for all purposes. See Cal. Rules of Court, rule 7.3. Thus, amended petitions must include all the attachments referred to in the amended petition, even if they were previously provided in a prior version of the petition.
2. Amended Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California Rules of Court, Rule 7.103.)
3. Notice of Petition, item 1: All of the names that the decedent was known by should be listed here, not the names of the decedent's children.
4. There is no proof of service on file showing that all those entitled to notice of the amended petition received it. (See Cal. Rules of Court, rule 7.53.)
5. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

6

**IN RE THE ESTATE OF EDWARD J. EGGLINGER, DECEASED
PR26-00132**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Danielle Lacampagne)

Objection to Danielle Lacampagne's Petition for Probate of Will and For Letters of Administration With Will Annexed (filed by Patricia Passeltiner)

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act (filed by Patricia Passeltiner)

PREGRANT ORDER

The court continued this matter from April 30, 2026, June 11, 2026, and June 30, 2026 to allow the parties to resolve issues with their pleadings. Nothing has been filed by Danielle Lacampagne to resolve the issues with her petition since the last hearing.

The court on its own motion continues this hearing to November 2, 2026, at 9:30 a.m. in Department 22 so that all matters can be heard concurrently. Pending the continued hearing, Danielle Lacampagne shall resolve the following issues with her petition. If she does not do so, the court will consider sustaining the objection and granting the uncontested petition filed by Patricia Passeltiner:

As to the Petition filed by Danielle Lacampagne:

1. Petition, item 2.d.(1): The petition states that bond should not be required for the reasons stated in item 3.e. However, no information was provided and the will waives bond only for the named executors in the will, not the petitioner.
2. Petition, item 3.g.(1)(d): The petitioner shall clarify if the alternate named executor is unwilling or unable to act, or is waiving appointment. An administrator with will annexed may not be appointed unless “all the executors named in the will have waived the right to appointment or are for any reason unwilling or unable to act.” (Prob. Code §8440.)
3. Petition, item 8: The petitioner must list herself, her relationship to the decedent, age and address. In addition, the petitioner shall provide a copy of the letters issued to her as temporary conservator of Barbara Mahoney for the court’s review and consideration and further clarify if she is seeking general letters of conservatorship of the person and estate. The petitioner shall also clarify if Barbara Mahoney is deceased.
4. The will offered for probate devises the estate to the trustee of “The Edward J. Egglinger Living Trust”. The trustee is not identified in item 8. The petitioner shall comply with Solano County Local Rules, Rule 7.51 and provide the name of any and all trustees and beneficiaries of the trust and give proper notice to them.
5. The petition proposes to admit the decedent’s pour over will into probate. However, the terms of the will devise the entire estate to the “The Edward J. Egglinger Living Trust.” The petitioner must file a copy of the trust, with all amendments, disclaimers and corrections, with the court under confidential cover. (Solano County Local Rules, Rule 7.51 c.)
6. The will presented was not witnessed and does not comply with the requirements of Probate Code § 6110(c). The petitioner shall present clear and convincing evidence that, at the time the decedent signed the will, the decedent intended the will to constitute their will. The Affidavit signed by the notary public who only met the decedent on the day they notarized the decedent’s will does not constitute clear and convincing evidence.

As to the Objection:

No issues noted.

As to the Petition filed by Patricia Passeltiner:

All issues resolved.

LINE

7

**IN RE THE ESTATE OF SHIRLEY ELOISE AUSTIN, DECEASED
PR26-00210**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from May 21, 2026 and June 25, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since April 2026 to resolve the outstanding issues.

The court on its own motion continues this hearing one final time to November 2, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Petition, item 2.d: The box checked is requesting a bond amount be fixed but the proposed amount of bond is blank.
 2. Petition, item 3.d: An estimated value of the estate must be provided. (Prob. Code § 8002(a)(4).) Unknown is insufficient.
 3. Petition, item 5.a: Either (3) or (4) must be checked. Either (7) or (8) must be checked.
 4. Petition, item 8: The petition states that the petitioner has no knowledge of the decedent's children's names and addresses. However, the attached death certificate lists the decedent's son and his address. The petitioner shall explain whether they have contacted the son.
 5. The petition nominates the Solano County Public Administrator to serve as the personal representative, but no acceptance of the nomination is attached.
 6. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
 7. The filed Proof of Service does not include the Solano County Public Administrator who is entitled to notice as the nominated representative.
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LINE

8

**IN RE THE ESTATE OF RAPHAEL MORENO ROMERO, DECEASED
PR26-00434**

Petition for Probate of Will and for Letters Testamentary and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to November 5, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. Petition, item 8: Per the instructions on page three of the Petition for Item 8, the petitioner is required to list everyone named in the decedent's will. Caleb Abel is the listed contingent beneficiary.
2. There is no proof of publication on file. (Prob. Code § 8124.)

LINE

9

**IN THE MATTER OF THE GREEN REVOABLE LIVING TRUST
PR26-00435**

Verified Petition for Order Confirming Trust Assets (Probate Code §§ 17200(b)(1), (4), 850(a)(3) and 856)

PREGRANT ORDER

The court on its own motion continues this hearing to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issue:

Notice of Hearing, item 3: The description of the property should be listed here, not the title of the document. The petitioner shall file an amended Notice of Hearing with the correct information and re-notice the petition.

LINE

10

**IN RE THE ESTATE OF ELLEN ROSITA GABRIEL CASA, DECEASED
PR26-00445**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court on its own motion continues this hearing to November 12, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issue:

1. Petition, item 1: The Daily Republic is not a newspaper of general circulation for Benicia. (See Prob. Code § 8120 et seq.) Publication must be done in a newspaper of general circulation.
 2. Petition, item 2.c: Either (full) or (limited) must be marked or the court will not grant powers under the IAEA.
 3. Petition, item 2.d(2): The box checked is requesting a bond amount be fixed but the amount of bond is blank.
 4. Petition, item 3.d: An estimated value of the estate must be provided. (Prob. Code § 8002(a)(4).) Zero is insufficient.
 5. Petition, item 3.f: Either (1), (2), or (3) must be marked.
 6. Petition, item 3.h: Either (3) or (4) must be marked.
 7. Petition, item 8: The predeceased spouse's name and date of death must be provided. (Solano County Local Rules, Rule 7.51(b).)
 8. Petition, item 9: The petition must also be signed by the self-represented litigant on the attorney signature line. (Probate Code §§ 1020, 1021; California Rules of Court, Rule 7.103.)
 9. Notice of Petition, item 3: This item must be completed.
 10. The filed Proof of Publication does not state the name of the person to be appointed as personal representative.
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